NICOLETTE WEALE [NEE HOLLAND]

Versus

AND

ADRIAN HOLLAND

AND

ALTHEA HOLLAND

AND

BRIGHTON NCUBE

AND

AUSTIN SIBANDA N.O

AND

MASTER OF THE HIGH COURT

AND

THE MASTER OF COURT N.O

AND THE REGISTRAR OF DEEDS COMPANIES, AND INTELLECTUAL PROPERTIES

AND

DEBRUYNE INVESTMENTS

(PRIVATE) LIMITED

IN THE HIGH COURT OF ZIMBABWE
NDLOVU J
BULAWAYO 01 APRIL & 3 July 2026

Ms B Maphosa for the applicant
Mr N. Sithole, for the 7th respondent.
No appearance for the rest of the respondents

NDLOVU J. This is an application by the applicants seeking a reinstatement of a matter deemed abandoned by operation of the law. The application is opposed only by the 7th Respondent.

HISTORY OF THE MATTER.

1. The applicant filed an application under HCBC 317/25, seeking an order compelling the 1st, 2nd, and 3rd Respondents to deliver company documents belonging to the 7th Respondent. The 7th Respondent was not a party in the first instance under record HCBC 317/25, thereby prompting the Applicant to seek the joinder of the 7th Respondent in HCBC 626/25.
2. As HCBC 626/25 was pending determination, the matter in HCBC 317/25 was set down for hearing on the 14th of October 2025. The proceedings under record number HCBC 317/25 were adjourned, and the matter was removed from the roll to allow the joinder application to be finalised.
3. The Application for joinder under record number HCBC 626/25 was granted on the 6th of November 2025 and, in pursuance of the order, a copy of the application under HCBC 317/25 was duly served on the 7th Respondent. The. 7th Respondent had 10 days to respond to the application, which 10 days lapsed on the 25th of November 2025 without any action from the 7th Respondent.
4. On the 9th of December 2025, the Registrar issued a directive that the matter be set down on the motion roll within 3 months; failing to do so would render the matter abandoned. On the 15th of January 2026, the Registrar issued a directive that the matter had been deemed abandoned, having failed to set it down for argument within 3 months of 14 October 2025, the date the matter was removed from the roll.

BEFORE COURT.

5. At the Hearing of this application, the Court raised the issue of the 7th Respondent being accorded audience in this matter when the 7th Respondent had defaulted on the opportunity to join in the matter contrary to this Court's ruling that it be joined. The response by Counsel for the 7th Respondent could not convince me to grant his client audience. As far as matters stand, one can only participate in a matter where they are a party to or in a subsequent matter to a matter where they were a party to. The only exception being in an application for rescission in terms of Rule 29 of the

High Court Rules. The 7th Respondent is out of court and has no audience in this matter as he is improperly before this court

DISPOSITION

6. As a result, this application is unopposed. Having reviewed the application, I am satisfied with the reasons proffered by the applicants for their inability to prosecute the matter to its finality with the requisite speed. I therefore grant the application.

NDLOVU J

V Chikomo Law Chambers, lawyers for the applicant

Sithole Law Chambers, lawyers for the 7th respondent